



Dispute Mediation Regulation

Formulated on January 21, 2005

Amended on November 24, 2006

Amended on January 28, 2009

Amended on February 5, 2025

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CHAPTER I. GENERAL PROVISIONS

§1. Purpose

The purpose of this Regulation is to stipulate the matters necessary for mediating the disputes related to transactions carried out in the securities market and derivatives market, which the Market Oversight Commission (hereinafter referred to as "the Commission") of the Korea Exchange (hereinafter referred to as "the Exchange") undertakes pursuant to [§405] of the Financial Investment Services and Capital Market Act (hereinafter referred to as "the Act"). (Amended on January 28, 2009)

§2. Definitions

(1) The term "petitioner" in this Regulation shall refer to the person who has submitted to the Commission the request for mediation of dispute arising from the transaction carried out in the securities market (including trading at multilateral trading companies) and derivatives market (hereinafter referred to as "the transaction"). (Amended on January 28, 2009; February 5, 2025)

(2) The term "respondent" in this Regulation shall refer to the counterparty to the petitioner. (Amended on January 28, 2009)

(3) The term "concerned party" in this Regulation shall refer to either the petitioner or the respondent or both the petitioner and respondent. (Amended on January 28, 2009)

(4) [Deleted on February 5, 2025]

(5) Other terms used in this Regulation shall have the same meaning given to them in the Act and other regulations governing the business of the Exchange. (Amended on January 28, 2009)

§3. Disputes Eligible for Mediation

The disputes about the rights and obligations or the conflict of interests that have arisen from the transaction shall be eligible for mediation pursuant to this Regulation. (Amended on January 28, 2009)

CHAPTER II. REQUEST FOR DISPUTE MEDIATION, ETC.

§4. Request for Mediation

(1) In case where there is a dispute related to the transaction, the client (including other interested party) or the member (including trading participants; the same hereinafter) may request the Exchange to mediate the concerned dispute (hereinafter referred to as “the request for dispute mediation”). (Amended on January 28, 2009; February 5, 2025)

(2) When intending to submit the request for dispute mediation to the Commission, the party may file an application for dispute mediation (including the electronic documents utilizing the information and communication network pursuant to the Act on Promotion of Information and Communication Network Utilization and Information Protection, etc. Hereinafter referred to as “the application for mediation”) with attached documents noted in each of the following items or make a verbal request. (Amended on November 24, 2006, January 28, 2009)

1. Document proving the cause and facts of request for mediation;
2. If the request for dispute mediation is submitted by an agent, the concerned power of attorney; and
3. In addition, other documentary proofs or materials required for mediation of dispute.

(3) The application for mediation pursuant to Para.(1) shall state the details noted in each of the following items. (Amended on November 24, 2006; January 28, 2009)

1. Names and addresses of petitioner and respondent (if the concerned party is a corporation, it refers to the company name, address of head office and name and address of company representative);
2. In case there is an agent, the name and address of agent;
3. The intention of mediation request; and
4. The reasons for requesting the mediation.

(4) In case where the Chairman of the Commission (hereinafter referred to as “the Chairman”) concludes that the matters stated in the civil petition that the Exchange has received can effectively be handled by way of the procedures for dispute mediation, the petition may be treated as request for dispute mediation upon obtaining the consent of person who filed the civil petition.

(5) In case where a verbal request or the mediation request pursuant to Para.(4) is received, the employee of the Exchange who is responsible for dispute mediation shall prepare record of mediation request stating the details noted in each Items of Para.(3), sign his/her name thereon, and obtain the confirmation of petitioner on the stated details. In this case, when the confirmation of petitioner has been obtained, it shall deem that the request for dispute

mediation has been received. (Amended on November 24, 2006; January 28, 2009)

(6) The formats of the application for mediation, record of mediation request, method of requesting the mediation and other matters related to dispute mediation request pursuant to Paras.(1) through (5) shall be stipulated in the Enforcement Rules of this Regulation (hereinafter referred to as “the Enforcement Rules”). (Amended on November 24, 2006)

§5. Selection of Representative

(1) A number of petitioners who have common interests may select one or several person(s) among them as their representative.

(2) When it is deemed necessary, the Chairman may ask a number of petitioners to nominate their representative.

(3) The representative selected may undertake all activities related to the dispute mediation for the petitioners who elected and appointed him/her. However, the consent of individual petitioner shall be obtained for the matter coming under any of the following items. (Amended on January 28, 2009)

1. Withdrawal of the request for dispute mediation;
2. Reconciliation with the respondent;
3. Acceptance or refusal of mediation decision; and
4. Selection and appointment of agent.

(4) The selection of representative pursuant to Paras.(1) and (2) and the consent of individual petitioner shall be done in writing. (Amended on November 24, 2006)

(5) Once the representative has been chosen, the notification of mediation date, etc. may not be sent to other petitioners who elected the representative. (Amended on November 24, 2006)

§6. Supplementation of Request for Dispute Mediation

When it is deemed necessary, the Chairman may ask to supplement the materials related to the dispute mediation request within the period stipulated in the Enforcement Rules. (Amended on November 24, 2006; January 28, 2009)

§7. Notification of Request for Dispute Mediation

(1) When a request for dispute mediation has been received, the Chairman shall notify the details of mediation request to the respondent without delay. (Amended on November 24, 2010)

(2) After receiving the notification pursuant to Para.(1), the respondent may submit the opinion statement and relevant documents within the period stipulated in the Enforcement Rules. (Amended on November 24, 2006; January 28, 2009)

(3) Upon the receipt of opinion statement and relevant documents from the respondent, the Chairman shall notify the concerned details to the petitioner without delay.

(4) The details of mediation request and opinion statement to be notified pursuant to Paras.(1) through (3), method of notification and other necessary matters shall be stipulated in the Enforcement Rules. (Amended on November 24, 2006)

§8. Investigation of Facts

(1) When it is deemed necessary for the investigation of facts related to the case of dispute mediation request (hereinafter referred to as “the case”), the Chairman may investigate the case by visiting the concerned party and other related parties or requesting the concerned party and other related parties to appear, making site visit or inquiring about the matters or facts, or requesting the concerned party and other related parties to confirm the facts or submit materials. In this case, the concerned party shall not refuse such investigation or request without valid reasons.

(2) For the investigation of case, the Chairman may delegate the appraisal, inquisition and other necessary investigation to the relevant institutions.

(3) When the advice on professional and technical matter is deemed necessary for the investigation of case, the Chairman may obtain the recommendations of experts, etc. (Amended on November 24, 2006)

(4) The matters necessary for investigation of facts, including the methods, pursuant to Paras.(1) through (3) shall be stipulated in the Enforcement Rules. (Amended on November 24, 2006)

CHAPTER III. CLOSING, WITHDRAWAL AND ETC. OF DISPUTE CASE PRIOR TO REFERRAL TO THE COMMISSION

§9. Closing of Dispute case Prior to Referral to the Commission

(1) In case where the case comes under any of the following items, the Chairman may close the case without referring it to the Commission: (Amended on November 24, 2006; January 28, 2009)

1. In case where the case is being investigated by a law enforcement agency or a lawsuit has already been brought against the case, or in case where a lawsuit has been filed after submitting the request for dispute mediation;
2. In case where a request for civil conciliation pursuant to the Judicial Conciliation of Civil Disputes Act has been filed with the court or a mediation request has been submitted to the Financial Supervisory Service, or in case where the mediation recommendation of concerned institution has been rejected; (Amended on January 28, 2009)
3. In case where after having been asked to supplement the request for dispute mediation pursuant to [§6], the petitioner did not supplement the request within the specified period without valid reasons or the request for supplementation was returned more than two (2) times because the whereabouts of petitioner is unknown, etc.;
4. In case where the request for dispute mediation has been submitted by the person who has no direct interest in the disputed matter for which the mediation was requested;
5. In case where without valid reasons, the petitioner has submitted the request for mediation whose details are identical to the mediation request that has been withdrawn, dismissed or closed;
6. In case where the material details of request for mediation has been found to be false through the investigation of facts;
7. In case where in view of the relevant laws and decrees, judicial precedents or mediation examples, it is deemed that the details of mediation request is clearly unacceptable;
8. In case where it is deemed obvious that the details of the request for mediation is unsuitable for dispute mediation; and
9. In case where it is difficult to clearly establish the factual relationship from the facts investigated through the claims of concerned parties or materials submitted by the concerned parties.

(2) In case where after having submitted the request for mediation, a lawsuit was filed for the case, a request for civil conciliation pursuant to the Judicial Conciliation of Civil Disputes Act was filed with the court or a mediation request was submitted to the Financial Supervisory Service, the concerned party shall send the written notification stating the matter

stipulated in the Enforcement Rules to the Commission without delay. (Amended on November 24, 2006; January 28, 2009)

(3) In case of closing the case pursuant to Para.(1), the Chairman shall send the written notification stating the facts such as the result and reasons for the action to the petitioner of mediation request within thirty (30) days of receipt date of request (in case the concerned date is public holiday pursuant to the Rules on Holidays of Public Agencies or Saturday, it shall be postponed to the next trading day: the same hereinafter). In this case, the days spent for supplementing the request for mediation pursuant to [§6] and days spent for investigating the facts pursuant to [§8] shall not be included in the calculation of number of days. (Amended on November 24, 2006; January 28, 2009)

§10. Withdrawal of Mediation Request

(1) When intending to withdraw the request for mediation, the petitioner may submit the application for withdrawal of mediation request (hereinafter referred to as “the withdrawal application”) or make a verbal withdrawal request. (Amended on November 24, 2006)

(2) In case where the petitioner submitted the withdrawal request, the Chairman shall close the case and notify such fact to the respondent. (Amended on November 24, 2006)

(3) The matter necessary for withdrawal request, including the details to be stated in the withdrawal application pursuant to Paras.(1) and (2) shall be stipulated in the Enforcement Rules. (Amended on November 24, 2006)

§11. Recommendation for Reconciliation

(1) In case where it is deemed appropriate to suggest the reconciliation to the concerned parties to efficiently resolve the disputed case, the Chairman may recommend the concerned parties to reconcile either verbally or in writing. In this case, the Chairman may present the reconciliation proposal to the concerned parties. (Amended on November 24, 2006)

(2) When it is deemed necessary to recommend the reconciliation, the Chairman may allow the attendance of parties interested in the concerned mediation in order for them to participate in the reconciliation agreement. (Amended on November 24, 2006)

(3) When the concerned parties have reached to an agreement, the concerned parties shall put their seal or signatures on three (3) copies of reconciliation agreement. In this case, the Chairman shall deliver one (1) copy of the reconciliation agreement to each of the concerned parties and retain one (1) copy at the Commission. (Amended on November 24, 2006)

(4) In case where the concerned party is the member of Exchange, such member shall report the outcome of follow-up measures taken according to the concerned reconciliation agreement to the Commission within twenty (20) days of receiving the reconciliation agreement. (Amended on November 24, 2006)

(5) The matters other than those noted in Para.(1) through Para.(4) that are necessary for the

reconciliation recommendation procedures shall be stipulated in the Enforcement Rules.

CHAPTER IV. DISPUTE MEDIATION BY THE COMMISSION

§12. Referral to the Commission and Notification

(1) When the case comes under any of the following items, the Chairman shall refer the case to the Commission within thirty (30) days of receiving the request for dispute mediation. In this case, the provisions of [§9(3)p] shall be applied *mutatis mutandis* to the calculation of number of days. (Amended on November 24, 2006; January 28, 2009)

1. Case where the Chairman deems that the recommendation for reconciliation is inappropriate for the case;
2. Cases where the concerned parties refuse to accept the reconciliation recommendation; and
3. Cases where the procedures for reconciliation recommendation has been undertaken, but no agreement has reached.

(2) When the case has been referred to the Commission, the Chairman shall notify such fact to the concerned parties without delay.

(3) The referral procedures pursuant to Paras.(1) and (2), the matters to be notified to the concerned parties and other necessary matters shall be stipulated in the Enforcement Rules. (Amended on November 24, 2006)

§13. Committee for Deliberation of Dispute Mediation

(Total amendment on November 24, 2006)

(1) For the deliberation of the case, the Commission may establish the committee for deliberation of dispute mediation (hereinafter referred to as “the deliberation committee”).

(2) The persons to serve as member of deliberation committee shall be appointed by the Chairman among the persons who meet the qualifications noted in any of the following items and the number shall be less than twenty (20): (Amended on January 28, 2009)

1. Persons with the qualifications of judge, prosecutor or lawyer;
2. Persons with expert knowledge in the law, management, securities and derivatives products, who hold or held the position of associate professor or higher in the certified academic institutions;
3. Persons who hold or held the officer’s position in the Korea Consumer Agency or consumer organizations pursuant to the Framework Act on Consumers;
4. Persons who hold or held the officer’s position in the company engaged in the financial investment business or computer company related to financial investment business, or person who have been working or worked in such company for at least ten (10) years;

5. Executive officer of the Market Oversight Division, who is nominated by the Chairman; and

6. Additionally, person who is or was engaged in the work related to the mediation or arbitration of financial disputes.

(3) The deliberation committee shall consist of five or more persons among the those designated pursuant to Para.(2), who are appointed by the Chairman for each case and the deliberation committee shall be chaired by the person chosen by the Chairman. In this case, the provisions of [§14] shall be applied *mutatis mutandis* to the exclusion, challenge and evasion of deliberation committee member and the Chairman shall make the decision or consent to such matter.

(4) When intending to refer the case to the Commission, the Chairman may ask the deliberation committee to review the case.

(5) The provisions of [§15 through §17] shall be applied *mutatis mutandis* to the review by the Deliberation Committee.

(6) The matters necessary for the deliberation committee such as the committee operation pursuant to Para.(1) through Para.(5) shall be stipulated in the Enforcement Rules.

(Total amendment on November 24, 2006)

§14. Exclusion, Challenge and Evasion of the Members of Commission

(1) When coming under the case noted in any of the following items, the member of the Commission shall be excluded from the deliberation or decision on the concerned case. In this case, whether or not to be excluded shall be decided by the Commission by its authority or according to the request of the concerned party. (Amended on November 24, 2006; January 28, 2009)

1. Cases where the Commission member or the spouse or ex-spouse of commission member becomes the concerned party to the case concerned or is affiliated with such case as a joint rightful person or joint obligator;

2. Cases where the Commission member is or was a relative of the concerned party of case;

3. Cases where the Commission member is or was involved in the case as an agent of concerned party; and

4. Cases where the Commission member has testified, provided legal advisory or appraisal service or adjudicated the loss for the case.

(2) In case where there is a reason that it is difficult to expect a fair deliberation and decision

from a Commission member, the concerned party may file an application for challenge. In this case, the Commission shall make the decision on whether or not to accept the challenge against the concerned commission member.

(3) In case where there is a reason noted in Para.(1) or Para.(2), the commission member may remove oneself from the case upon obtaining agreement of the Commission. (Amended on November 24, 2006)

(4) The concerned party requesting the exclusion and challenge and the evading member shall submit the written statement of his/her reasons to the Commission. (Amended on November 24, 2006)

(5) In addition to those mentioned in Para.(1) through Para.(4), the matters necessary for the exclusion, challenge and evasion of member shall be stipulated in the Enforcement Rules. (Amended on November 24, 2006)

§15. Investigation of Facts and Request for Expert Advice by Commission

(1) If it is deemed necessary for mediation of dispute, the Commission may investigate the facts about the case and compile the relevant materials. In this case, the provisions of [§8] shall be applied *mutatis mutandis* to the investigation of facts and compilation of materials.

(2) When the expert advice is deemed necessary for the mediation of dispute, the Commission may seek the advice of experts on the professional and technical matters.

§16. Date of Mediation

(1) The Chairman shall determine the date and place of mediation and inform the concerned parties of such facts.

(2) When intending to request the change of mediation date, the concerned party shall make a written or verbal request by three (3) days before the mediation date notified.

(3) The matters necessary for changing the mediation date noted in Para.(2) shall be stipulated in the Enforcement Rules.

§17. Hearing of Opinions of Concerned Parties, Etc.

(1) In case where it is deemed necessary to hear the opinions of concerned parties and other interested persons, appraisers, witnesses, etc. (hereinafter referred to as “the concerned parties, etc.”), the Commission may request the concerned parties, etc. to present their opinions by appearing at the Commission meeting on the mediation date. In this case, unless there is an urgent reason, the Commission shall send the request to appear at least seven (7) days before the mediation date.

(2) The concerned parties and other interested persons may attend the Commission meeting

to present their statements, and upon receiving the request of the concerned parties and other interested persons, the appraisers or witnesses shall present their opinions by appearing at the Commission meeting after obtaining the permission of Commission. (Amended on November 24, 2006)

(3) In addition to those noted in Paras.(1) and (2), the matters necessary for hearing the opinions of concerned parties, etc. and notification for attendance shall be stipulated in the Enforcement Rules. (Amended on November 24, 2006)

§18. Decision of Commission and Notification Thereof

(1) The Commission shall make the mediation decision about the case referred to it within thirty (30) days from the referral date. However, the Commission may decide to turn down the case if it is deemed that the mediation leads to no practical benefit, including the instance of the pending case coming under any Items (excluding Items 1 & 2) of [§9(1)]. (Amended on November 24, 2006; January 28, 2009)

(2) In case where it is judged that the Commission is unable to make the decision within the period noted in Para.(1) due to unavoidable reason such as change of mediation date, the Chairman may extend the period up to fifteen (15) days. In this case, the Chairman shall notify in writing the concerned parties the reasons for extension and the extended period. (Amended on November 24, 2006)

(3) Once the decision pursuant to Para.(1) has been made, the Commission shall prepare the mediation decision notice or dismissal decision notice, which states the matters noted in each of following items and is signed by the members presented, and send it to the concerned parties without delay. In this case, the letter of acceptance of mediation decision shall be attached to the mediation decision notice. (Amended on November 24, 2006; January 28, 2009)

1. Name and address of concerned parties (in case of corporation, the name and location of its head office, and the name and address of the representative);
2. Main points of decision on mediation or dismissal;
3. Reasons for making the mediation decision or dismissal decision; and
4. Date when the mediation decision or dismissal decision was made.

(4) If the pending case comes under any of the following items, the Chairman shall close the case and notify the concerned parties of such fact. (Amended on November 24, 2006; January 28, 2009)

1. Cases where the petitioner withdraws the case; and
2. Case that comes under [§9(1)1 or 2].

(5) The matters necessary for decisions and notification pursuant to Para.(1) through Para.(4) shall be stipulated in the Enforcement Rules. [January 28, 2009]

§19. Realization of Mediation, etc.

(1) The mediation shall be realized when both the concerned parties have expressed their willingness of acceptance of mediation decision within fifteen (15) days from date of receiving the mediation decision notice pursuant to [§18].

(2) It shall deem that the willingness of acceptance of mediation decision pursuant to Para.(1) is expressed when both the concerned parties put their signature on the consent statement if the concerned parties attend the Commission meeting, and when the signed acceptance letter of mediation decision is submitted by both the concerned parties if the letter of acceptance of mediation decision is submitted. (Amended on November 24, 2006)

(3) In case where either or both of the concerned parties does not express its willingness to accept the mediation decision within the period noted in Para.(1), it shall deem that the mediation is not materialized.

(4) In case where the mediation is not materialized, the Chairman shall notify the concerned parties of such facts and the reason thereof.

(5) In case where the concerned party who is the member has not accepted the mediation decision, such member shall notify the Commission in writing the reasons for non-acceptance. (Amended on November 24, 2006)

(6) The matters to be stated in the consent statement pursuant to Para.(1) through Para.(5) and other matters necessary for the realization of mediation shall be stipulated in the Enforcement Rules. (Amended on November 24, 2006)

§20. Petition for Re-mediation

(1) In case of having the reasons noted in any of the following items, the concerned party may request the Commission to reconsider the mediation decision. However, this provision shall not be applied to the case where the concerned party has already stated the reasons for requesting the reconsideration at the time of submitting the mediation request or did not state the concerned reasons at the time of submitting the mediation request while being fully aware of them. (Amended on November 24, 2006; January 28, 2009)

1. Cases where new important fact that was not made available during the mediation of concerned case is revealed, which could have significant impact on the outcome of mediation;

2. Cases where it has been found that the document, testimony of witness, statement of reference, etc. used as evidence for mediation is false or has been altered or faked;

3. Cases where the law or court decision that was the guiding principle in making the mediation decision has been amended;

4. Cases where the Commission has overlooked the matter that could have significant impact on the mediation outcome; and

5. Cases where a member of Commission who comes under the exclusion criteria has participated in the mediation.

(2) The concerned party shall submit the request for reconsideration within thirty (30) days of receiving the mediation decision notice, and the Chairman shall close the case after the concerned period has elapsed, unless there is a special reason.

(3) The Chairman shall refer the case for which the reconsideration of mediation decision has been submitted and the provisions of this Chapter shall be applied *mutatis mutandis* to the processing of such case.

§21. Reporting of Actions Taken

(1) In case where the mediation has been realized pursuant to [§19], the member who is the concerned party shall report to the Commission the follow-up actions taken upon the realization of mediation within twenty (20) days of the day when the mediation was realized. (Amended on November 24, 2006; January 28, 2009)

(2) The Chairman shall notify the end result of mediated case to the Commission.

CHAPTER V. SUPPLEMENTARY PROVISIONS

§22. Support for Lawsuit

(1) In case where the petitioner requests the support for lawsuit for the case coming under any of the following items, the Chairman may provide the support for the lawsuit launched by the petitioner. However, this provision shall not be applied to the case where it is deemed that no practical benefit would result from the lawsuit or the lawsuit is inappropriate for public interest. (Amended on November 24, 2006; January 28, 2009)

1. The case for which the member who is the respondent rejected the mediation decision without valid reasons; and

2. As a case where the member who is the respondent (including the officer or employee who is implicated in the case) files a lawsuit, etc. before the mediation decision is made, the case for which it is clear that in view of the mediation precedents, court rulings, etc., the claim of petitioner would be accepted.

(2) The criteria, procedures and method for support for lawsuit, and other matters necessary for providing support for lawsuit shall be stipulated in the Enforcement Rules. (Amended on November 24, 2006)

§23. Confidentiality of Mediation and Prohibition of Divulgence

(1) In principle, the mediation shall be kept confidential.

(2) The members of Commission, members of the deliberation committee, and officers and employees of the Exchange who are performing the work related to dispute mediation shall not leak the details, progress and outcome of mediation. (Amended on November 24, 2006)

§24. Publication of Dispute Mediation

Notwithstanding [§23], the Chairman may, when it is deemed necessary for the interest of public and establishment of fair trading system, etc., make public the contents of dispute mediation. In this case, in case of intending to include real names on the details made public, the consent of concerned parties and relevant officers and employees of member who is the concerned party shall be obtained. (Amended on November 24, 2006)

§25. Maintenance and Conservation of Mediation Records

The Chairman shall maintain and conserve the records concerning the receipt, supplementation, fact investigation, outcome, etc. of mediation for ten (10) years from the date of receiving the dispute mediation request. (Amended on November 24, 2006)

§26. Payment of Allowance, etc.

The Exchange may pay the allowance, expense, etc. to the members of deliberation committee, appraiser, witness and others in accordance with the guidelines established by the Exchange. (Amended on November 24, 2006)

§26-2. Opinion Collection

In case of revising this regulation (including the Enforcement Rules), the Exchange shall collect opinions from stakeholders in accordance with the Enforcement Rules.

[April 29, 2020]

§27. Enforcement Rules

The matters necessary for the enforcement of this Regulation shall be stipulated in the Enforcement Rules.

ADDENDA

(Regulation No. 15 / January 21, 2005)

§1. Effective Date

This Regulation shall become effective on the incorporation date of the Exchange.

§2. Interim Measures

The dispute mediation request that has been submitted to the Korea Stock Exchange and the KOSDAQ Market Committee before the effective date of this Regulation shall be construed as the dispute mediation request submitted to the Exchange, and the mediation case pending before the dispute mediation committee of the Korea Stock Exchange and the KOSDAQ Market Committee shall deem to have been referred to the Market Oversight Commission on the effective date of this Regulation.

ADDENDUM

(Regulation No. 204 / November 24, 2006)

This Regulation shall become effective on December 1, 2006.

ADDENDUM

(Regulation No. 406 / January 28, 2009)

This Regulation shall become effective on February 4, 2009.

ADDENDUM

(Regulation No. 1823 / April 9, 2020)

This Regulation shall become effective on February 4, 2009.

ADDENDUM

(Regulation No. 2282 / February 5, 2025)

This Regulation shall become effective on March 4, 2025.